

Court No. - 3

Case :- WRIT - C No. - 4964 of 2022

Petitioner :- Abrar Hussain

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shri Prakash Mishra

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard Sri Prakash Mishra, learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Sri Ashish Kumar Gupta, Advocate holding brief of Sri Pranjal Mehrotra, learned counsel for the respondent nos. 2 and 3.

This writ petition has been filed praying for the following relief:-

(i) Issue a writ order or direction in the nature of certiorari to quashing the notice dated 15.12.2019 (Rs. 82,401/-) issued by Pashchimanchal Vidyut Vitran Nigam Limited (Annexure No.2) to the writ petition.

Learned counsel for the petitioner submits that impugned notice dated 15.12.2019 has been issued to the petitioner even though no electricity connection was given to the petitioner. He, therefore, submits that the impugned notice is without jurisdiction and a glaring example of arbitrary exercise of power by the respondents and breach of fundamental rights guaranteed under Article 14 and 21 of the Constitution of India.

Learned counsel for the respondent nos.2 and 3 prays for and is granted a week's time to file counter affidavit, failing which the respondent no.3 shall remain personally present before this Court. Petitioner shall have three days thereafter to file rejoinder affidavit.

Put up as a fresh case before the appropriate bench on 19.07.2022.

Order Date :- 4.7.2022

T.S.

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Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Chandra Kumar Rai,J.

Heard Shri Prakash Mishra, learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Sri Pranjal Mehrotra, learned counsel for the respondent nos.2 and 3.

This writ petition has been filed praying for the following relief:

"(i) issue a writ order or direction in the nature of certiorari to quashing the notice dated 15.12.2019 (Rs.82,401/-) issued by Pashchimanchal Vidyut Vitran Nigam Limited (Annexure No.2) to the writ petition."

Sri Pranjal Mehrotra, learned counsel for the respondent nos.2 and 3/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed off** giving liberty to the petitioner to submit his objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent no.2 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent no.2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 19.7.2022

Rameez